

In this case, as in *Heiner v. Donnan*, the decedent, within two years prior to his death, had made transfers *inter vivos* without consideration which were complete and irrevocable. The commissioner included the value of the property so transferred in the value of the gross estate, and assessed a death transfer tax accordingly. Following a claim for refund and its rejection, the executor brought this action to recover the amount of the tax attributable to such inclusion. The trial court found that in fact none of the transfers had been made in contemplation of death, and rendered judgment for the executor for the amount claimed, on the ground that § 302 (c) violated the due process clause of the Fifth Amendment and was therefore unconstitutional.

Our decision in *Heiner v. Donnan* requires an affirmative answer to the question submitted.

It is so ordered.

MR. JUSTICE BRANDEIS and MR. JUSTICE STONE dissent.

MR. JUSTICE CARDOZO took no part in the consideration or decision of this case.

SMILEY v. HOLM, SECRETARY OF STATE.

CERTIORARI TO THE SUPREME COURT OF MINNESOTA.

No. 617. Argued March 16, 17, 1932.—Decided April 11, 1932.

1. The function of a state legislature in prescribing the time, place and manner of holding elections for Representatives in Congress under Constitution, Art. I, § 4, is a law-making function in which the veto power of the state governor participates if, under the state constitution, the governor has that power in the making of state laws. P. 365.
2. The rule giving weight to practical construction is especially applicable in the case of a constitutional provision which governs the exercise of political rights and hence is subject to constant and careful scrutiny. P. 369.

3. Where the number of Representatives in Congress to which a State is entitled under the present apportionment pursuant to the Act of June 18, 1929, is the same as the number under the last previous apportionment (Act of August 8, 1911) and the election districts are unchanged, elections of Representatives may be conducted in the same manner as before the reapportionment. P. 374.
 4. Where the number of Representatives for a State has been increased by the new apportionment, the additional Representatives, if no new districts are created, may be elected by the State at large under the clause of the Constitution (Art. I, § 2) providing that "The House of Representatives shall be composed of Members chosen every second year by the People of the several States." *Id.*
 5. Where the number of Representatives has been decreased by the new apportionment, all the Representatives must be elected by the State at large unless and until new districts are created. *Id.*
 6. The conclusions set forth in the last three paragraphs, *supra*, are consistent with the general provisions (§§ 3-5, inclusive) of the reapportionment Act of August 8, 1911; and it is therefore unnecessary to decide whether those parts of the Act remain in force since the new apportionment. P. 373.
 7. Inclusion of an earlier statutory provision in the United States Code does not operate as a re-enactment. *Id.*
- 184 Minn. 228; 238 N. W. 494, reversed.

CERTIORARI, 284 U. S. 616, to review a judgment affirming the dismissal of a suit to enjoin the Secretary of State of Minnesota from acting under a measure of the legislature purporting to redistrict the State for congressional elections. The bill sought to have all filings for nomination declared illegal. There was first an interlocutory appeal from an order sustaining a demurrer.

Messrs. George T. Simpson and Alfred W. Bowen, with whom *Messrs. John A. Weeks and W. Yale Smiley* were on the brief, for petitioner.

Messrs. Henry N. Benson, Attorney General of Minnesota, and *William H. Gurnee*, Assistant Attorney General, for respondent.

The word "legislature" is used eleven times in the Constitution and five times in its amendments. In the following instances there can be scarcely any doubt that it refers to the bicameral body holding sessions periodically for the purpose principally of enacting laws for the State:

Art. I, § 2, par. 1, wherein it is required that electors of members of the House of Representatives shall have the qualifications requisite for electors of the most numerous branch of the state legislature; Art. I, § 3, par. 1, relating to the election of two senators from each State chosen by the legislature thereof; Art. I, § 3, par. 2, wherein the Executive of the State is given authority to fill a vacancy in the office of United States Senator in Congress during a recess of the legislature, until the next meeting of the legislature, which shall then fill such vacancy; Art. I, § 8, par. 17, giving the Congress power to exercise legislative authority over all places within the United States purchased by the consent of the legislature of the State in which the same shall be; Art. IV, § 3, par. 1, forbidding the formation of a new State by the junction of two or more States or parts of States without the consent of the legislatures of the States concerned; Art. IV, § 4, wherein the United States guarantees to protect every State against domestic violence on application of the legislature, or of the executive when the legislature can not be convened; Art. V, which deals with amendment of the Constitution; Art. VI, par. 3, which requires members of the several state legislatures to be bound by oath or affirmation to support the Constitution; Seventeenth Amendment, par. 1, which requires that electors of senators shall have the qualifications requisite for electors of the most numerous branch of the state legislatures; Seventeenth Amendment, par. 2, which authorizes the legislature of a State to empower the executive thereof to make tempo-